

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aliza Klingenstein	Team: Squad #07	CCRB Case #: 202105475	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 08/23/2021 2:39 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/23/2023	Precinct: 67		
Date/Time CV Reported Mon, 09/13/2021 3:54 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 09/13/2021 3:54 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Rosario	18387	966819	067 PCT
2. POM Christophe Bonilla	03642	966472	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Brianna Mazimann	05096	965315	067 PCT
2. POF Shaniece Hicks	26971	967111	067 PCT
3. POM Radoslaw Turowski	09564	954380	067 PCT
4. POM James Govindan	17815	958651	067 PCT
5. SGT Timothy Frohberg	04329	952753	067 PCT
6. PO James Campiglia	21375	962288	067 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Joseph Rosario	Abuse: Police Officer Joseph Rosario entered § 87(2)(b)	A . Substantiated
B . POM Christophe Bonilla	Abuse: Police Officer Christophe Bonilla entered § 87(2)(b)	B . Substantiated
C . POM Joseph Rosario	Abuse: Police Officer Joseph Rosario threatened to remove § 87(2)(b) to the hospital.	C . Substantiated
D . POM Christophe Bonilla	Abuse: Police Officer Christophe Bonilla threatened to remove § 87(2)(b) to the hospital.	D . Substantiated

Case Summary

On September 13, 2021, § 87(2)(b) filed this complaint via the CCRB on-line website.

On August 23, 2021, at approximately 2:39 p.m., at § 87(2)(b) in Brooklyn, Police Officer Joseph Rosario and Police Officer Christopher Bonilla, both of the 67th Precinct, arrived at the building in response to a 911 call of a dispute. § 87(2)(b) the building super, told the officers § 87(2)(b) was trespassing on the § 87(2)(b) floor. PO Rosario and PO Bonilla went upstairs and entered § 87(2)(b) (**Allegations A and B: Abuse of Authority, substantiated**). Once inside, PO Rosario and PO Bonilla determined § 87(2)(b) was an emotionally disturbed person (EDP) and requested EMS (**Allegations C and D: Abuse of Authority, substantiated**). EMS § 87(2)(b) arrived and determined § 87(2)(b) did not need to be removed to the hospital.

One BWC video was used to analyze the allegations (**Board Review 01**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joseph Rosario entered § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Christopher Bonilla entered § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Joseph Rosario threatened to remove § 87(2)(b) to the hospital.

Allegation (D) Abuse of Authority: Police Officer Christopher Bonilla threatened to remove § 87(2)(b) to the hospital.

§ 87(2)(b) testified that he was home at § 87(2)(b) with his cousin, § 87(2)(b) when PO Rosario and PO Bonilla pushed open the front door, which had been unlocked and cracked open, and entered the apartment unannounced (**Board Review 02**). To get to § 87(2)(b) from the lobby, a person must use a key fob to direct the building elevator to the apartment. The building has no hallways between the elevator and the apartments, so the elevator opens directly in front of an apartment door on each floor.

§ 87(2)(b) told PO Rosario and PO Bonilla they could not enter his apartment, as § 87(2)(b) was a foreign national and his apartment was a registered temple. PO Rosario and PO Bonilla disregarded this and stated § 87(2)(b) was guilty of trespass. § 87(2)(b) stated he had lived in the apartment for three years and had spoken to the building manager about renting § 87(2)(b) in addition to § 87(2)(b). § 87(2)(b) stated he wanted a sheriff to come to the scene. PO Rosario stated into his radio, "Oh, we got an EDP in here."

PO Rosario requested § 87(2)(b) identification. § 87(2)(b) walked from the living room to his bedroom to retrieve his ID, at which point both officers followed § 87(2)(b) into his bedroom. § 87(2)(b) stated he was a foreign national, and PO Rosario stated § 87(2)(b) was a danger to himself. § 87(2)(b) asked how so, but neither officer responded.

Two EMTs entered the apartment. § 87(2)(b) stated he would not go with the EMTs and asked the EMTs to request their supervisor. EMS § 87(2)(b) arrived, § 87(2)(b) answered his questions, and EMS § 87(2)(b) stated § 87(2)(b) was responsive and not an EDP. PO Rosario approached EMS § 87(2)(b) asked if he was sure, and EMS § 87(2)(b) confirmed. The officers left the apartment, and § 87(2)(b) was not removed to the hospital.

In a conversation with § 87(2)(b) the building manager, § 87(2)(b) stated § 87(2)(b) had not paid rent for § 87(2)(b) in almost one year at the time of this incident, and the building was in the process of evicting him (**Board Review 03**). In addition to § 87(2)(b) § 87(2)(b) had been occupying § 87(2)(b) for approximately two weeks since the previous tenant had left. This was why the building management called 911 on August 23, 2021.

The Event for this incident classifies the job as “Dispute: Inside” (**Board Review 04**). The Event comments include, “LL TT dispute – tenant came back to location – not allowed to be at location...TT is allowed to be in § 87(2)(b) not § 87(2)(b)”.

In PO Rosario’s BWC at minute mark 0:50, PO Rosario and PO Bonilla meet, the building super, § 87(2)(b) outside § 87(2)(b) (**Board Review 01**). At 1:00, § 87(2)(b) states someone is occupying an apartment without a lease, and at 1:09, § 87(2)(b) states he last saw the person on Saturday (August 21, 2021, two days prior to this incident). At 1:57, § 87(2)(b) lets the officers into the building, and at 2:23, PO Rosario and PO Bonilla stand in the elevator and § 87(2)(b) states the elevator door will open into § 87(2)(b) apartment when the officers arrive on the § 87(2)(b) floor.

At 3:04, the elevator door opens, and the interior of § 87(2)(b) apartment is visible. PO Rosario stands inside the elevator and tells § 87(2)(b) the officers received a call of trespass. At 3:17, § 87(2)(b) points to his apartment walls and states the officers are trespassing, as “universal law” is posted. (The apartment appears furnished and there are framed posters and a television on the wall opposite the entrance.) At 3:28, PO Rosario requests to see a rental agreement to verify that § 87(2)(b) lives in the apartment, and at 3:38, § 87(2)(b) asks to show the officers his verification downstairs. At 3:47, PO Rosario and PO Bonilla remain standing in the elevator, and PO Rosario asks § 87(2)(b) to provide identification and a piece of mail as proof of residency. At 3:53, § 87(2)(b) presents a postmarked envelope that contains his name and the apartment address handwritten on it. At 4:13, § 87(2)(b) states he is a “treaty man,” and at 4:22, the officers ask if § 87(2)(b) has a state ID. At 4:28, § 87(2)(b) states he is a foreign national, hands PO Rosario multiple sheets of white paper, and states he is providing the papers to identify himself.

At 4:43, § 87(2)(b) turns away from the officers and walks further into the apartment, next to the kitchen. PO Bonilla and PO Rosario follow § 87(2)(b) and stand approximately 15 feet inside the front door. At 5:02, § 87(2)(b) states the officers do not have a warrant. At 5:05, PO Bonilla points to the front door, and PO Rosario states the officers do not need a warrant, as the door was open when they arrived. At 5:42, PO Rosario and PO Bonilla follow § 87(2)(b) into his bedroom, and PO Rosario states § 87(2)(b) needs to show proof of residency and the officers will leave.

At 6:42, after § 87(2)(b) has returned to the living room, he hands PO Rosario a card and states it is his identification. At 6:55, PO Rosario states he needs to see a state ID, and § 87(2)(b) states his card is a federal ID. At 7:28, PO Bonilla asks § 87(2)(b) how he pays his electric bill, and § 87(2)(b) responds, “I’m a foreign national, we don’t get charged for that.” At 7:48, PO Bonilla states, “EDP this guy,” and at 8:03, PO Rosario states, “EDP” into his radio. At 8:13, § 87(2)(b) turns to PO Bonilla and states, “He called me an EDP, emotionally disturbed person? You in my place.”

At 23:45, two EMTs arrive on scene. At 24:12, EMT 1 states he wants to close the door to the back terrace, and the officers walk toward § 87(2)(b) who stands with his back facing the open terrace door. At 24:20, § 87(2)(b) states he needs the officers to back up, and he steps backward towards the terrace. At 24:24, PO Rosario, PO Turowski, Police Officer Brianna Mazimann, and

Police Officer Shaniece Hicks, all of the 67th Precinct, placed § 87(2)(b) in handcuffs. At 27:15, § 87(2)(b) states the officers are detaining him for no reason since he is not under arrest. At 27:17, PO Rosario states, “No, but you are going to the hospital.”

At 29:30, § 87(2)(b) asks why he is going to the hospital, and at 29:37, EMT 2 states, “I’m not seeing any reason. I don’t know...” At 31:10, EMT 1 states he is requesting a supervisor, and EMS supervisor § 87(2)(b) arrives at 43:23. At 47:07, PO Rosario approaches EMS § 87(2)(b) and states § 87(2)(b) was unable to provide valid identification or proof of residency, was uncooperative by acting irate and “talking nonsense,” and that the officers handcuffed § 87(2)(b) when he walked towards the open balcony. At 48:05, EMS § 87(2)(b) states, “In terms of who’s an EDP, the final determination is NYPD.” At 48:24, EMS § 87(2)(b) asks PO Rosario, “Do you guys want?” PO Rosario responds, “We’ll escort, yeah, we’re gonna escort,” and PO Rosario walks toward § 87(2)(b). At 48:58, EMS § 87(2)(b) states, “I think you’re alert and oriented, but-,” as § 87(2)(b) states he is not going anywhere. At 49:10, PO Rosario tells EMS § 87(2)(b) “If you think he’s alert and oriented, I’ll undo the cuffs.” At 49:23, EMS § 87(2)(b) repeats § 87(2)(b) is alert and oriented, PO Rosario removes § 87(2)(b) handcuffs, and the officers leave the scene.

Both PO Rosario (**Board Review 05**) and PO Bonilla (**Board Review 06**) testified that prior to going upstairs, § 87(2)(b) stated there was a man trespassing on the § 87(2)(b) floor. Neither officer recalled any additional information they received about the trespass while downstairs, and PO Rosario testified the officers did not attempt to gather more information before going upstairs. PO Bonilla testified that § 87(2)(b) alerted the officers the elevator would open directly into § 87(2)(b) apartment, but PO Rosario testified he first learned this upon arriving on the § 87(2)(b) floor. Both officers testified they entered § 87(2)(b) to speak to § 87(2)(b) about the trespass because they did not want to prevent other residents from using the elevator, nor did they want to ride the elevator back downstairs or to another floor without conducting a proper investigation.

PO Rosario testified that the officers asked what was happening between § 87(2)(b) and the landlord, and § 87(2)(b) told the officers to get out, stated the officers had no right to speak to him, and that whenever they did, they owed him \$10,000. PO Rosario testified § 87(2)(b) appeared irate, paced back and forth, and did not answer the officers’ questions. Both PO Rosario and PO Bonilla testified that when they requested proof of residency, they stood inside the apartment entrance, and § 87(2)(b) produced a handwritten envelope and what he considered to be valid identification. Both officers found the evidence insufficient, as the mail was not from an official agency, and the ID was not government-issued.

PO Bonilla testified that the apartment looked “cluttered,” and PO Rosario testified that it appeared someone lived in the apartment. Seeing this, PO Rosario began to believe the incident was a landlord-tenant issue and did not involve police. PO Rosario testified that § 87(2)(b) stated he did not have to pay rent because he was a sovereign citizen, which led PO Rosario to determine § 87(2)(b) was not guilty of trespass and had likely lived in the apartment for more than 30 days. PO Rosario testified that as the officers had originally gone upstairs to investigate the trespass, the officers could have left the scene at this point, but given that § 87(2)(b) was irate, upset, and did not want to show proof of residency, the officers chose to remain out of fear that § 87(2)(b) would think they did not do their job sufficiently. PO Rosario testified that the moment he determined § 87(2)(b) was not trespassing was also the moment he determined § 87(2)(b) was an EDP, and he decided to remain in the apartment to wait for EMS. PO Bonilla testified that he was unable to determine whether § 87(2)(b) had trespassed throughout the incident, but that while investigating the trespass, PO Bonilla’s priority shifted to growing concerned that § 87(2)(b) was not able to answer simple questions and may have something psychologically wrong with him.

PO Rosario testified that after § 87(2)(b) provided unofficial mail and identification, he began to rummage through the apartment, and the officers followed him to make sure he did not cause harm. PO Rosario did not see any objects he was specifically worried about, nor did he observe § 87(2)(b) reach for anything at any point. PO Bonilla testified that he followed § 87(2)(b) into the apartment because he believed it was possible § 87(2)(b) was moving around to get something that could hurt the officers. PO Bonilla testified it was standard procedure for him to follow a civilian further into their residence to watch for this behavior. Throughout the incident, PO Bonilla could not determine whether § 87(2)(b) was a threat, but he wanted to make sure § 87(2)(b) did not become a threat to anyone.

PO Rosario testified that he determined § 87(2)(b) was an EDP based on § 87(2)(b) statements such as, “Get out, I’m a sovereign citizen, I don’t need to speak with you,” and his general irate and upset demeanor. When PO Rosario requested EMS to the scene, § 87(2)(b) had not done anything to indicate he was a harm to himself or others. However, PO Rosario wanted EMS to evaluate § 87(2)(b) based on his statements, his belief that he did not need to abide by the officers’ laws, his claim of sovereign citizenship, his irate demeanor, and his pacing movements around the apartment.

PO Bonilla testified that the moment he determined § 87(2)(b) needed to be removed to the hospital was the moment he stated, “EDP this guy,” as captured on BWC. PO Bonilla made this determination based on § 87(2)(b) overall demeanor, and it was not a result of anything specific at this point in the incident. PO Bonilla testified that § 87(2)(b) was irate, loud, unresponsive to the officers’ questions, made statements that were not based in reality, and moved around the apartment while flailing his arms and without a sense of direction. PO Bonilla believed § 87(2)(b) could have been a threat to someone by the way he moved around the apartment, but it was § 87(2)(b) overall demeanor that made PO Bonilla believe he needed to be removed for an evaluation. PO Rosario testified that he told § 87(2)(b) he was going to the hospital because he believed § 87(2)(b) would be going to the hospital, as PO Rosario had told the EMTs about § 87(2)(b) and the EMTs had not yet stated § 87(2)(b) would not be going to the hospital at this point.

Patrol Guide procedure 214-13 prohibits officers from involving themselves in eviction processes beyond preserving the peace and protecting life and property (**Board Review 07**).

People v. Ponto 103 A.D.2d 573 held that tenants have a reasonable expectation of privacy (and are thus entitled to Fourth Amendment protection) in leased spaces whether or not they are behind on rent, and landlords do not have the authority to consent to searches on behalf of their tenants (**Board Review 08**).

Patrol Guide procedure 221-13 instructs officers to request the response of ambulance personnel “when a uniformed member of the service reasonably believes that a person who is apparently mentally ill or emotionally disturbed, must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others” (**Board Review 09**).

Given that the 911 call went over the radio as a landlord-tenant dispute and § 87(2)(b) told the officers § 87(2)(b) had been in the apartment for two days, PO Rosario and PO Bonilla knew they were responding to an ongoing landlord-tenant issue § 87(2)(g)

§ 87(2)(b) BWC shows they were aware the elevator door would

open into § 87(2)(b) apartment prior to arriving on the § 87(2)(b) floor. § 87(2)(g)

As the officers followed § 87(2)(b) into his apartment while continuing to request proof of residency after he provided a piece of mail at the door and stated he did not want the officers entering, § 87(2)(g)

It is therefore recommended **Allegations A and B** be **substantiated**.

Patrol Guide procedure 221-13 requires that officers reasonably believe a person is a threat to himself or others prior to requesting EMS for a psychological evaluation. As shown on BWC, § 87(2)(b) was upset by the officers' presence in his home § 87(2)(g)

While § 87(2)(b) was not ultimately removed, PO Rosario and PO Bonilla both decided to call EMS, referred to § 87(2)(b) as an "EDP" in front of him, and PO Rosario told § 87(2)(b) he was going to the hospital before the EMTs had made their decision. § 87(2)(g)

It is therefore recommended **Allegations C and D** be **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Rosario has been a member of service for three years and has been a subject in two other CCRB complaints and three other allegations, none of which has been substantiated. § 87(2)(g)
- PO Bonilla has been a member of service for three years and has been a subject in one other CCRB complaint involving one allegation, which was not substantiated. § 87(2)(g)

Civil and Criminal Histories

- As of February 22, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 13**).

● [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator: Inv. Klingenstein Inv. Aliza Klingenstein March 21, 2022
Signature Print Title & Name Date

Squad Leader: _____

Signature	Manager Vanessa Rosen	March 23, 2022
_____	_____	_____
	Print Title & Name	Date

Reviewer: _____

Signature	Print Title & Name	Date
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